

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Mumbai **PS:** EOB Mumbai
Year: 2025
FIR No: RC0682025E0003 **Date:** 13/06/2025

2. **Acts & Sections:**

Acts	Sections	R/W Section
IPC	120 B	420, 465, 467, 468 and 471
PC Act-1988	13(2) r/w 13(1)(d)	

3. **Suspected offences:** Bank Fraud
(a) **Occurrence of offence:**
Day: **Time Period:**
From Date: 2015 **To Date:** 2017
(b) **Information Received at PS:**
Date: 11/06/2025
(c) **General Diary Reference:**
Entry No.: 6
Date: 13/06/2025 **Time:** 17:30:12

4. **Type of Information:** Written

5. **Place of Occurrence:** Ahmednagar
(a) **Direction & distance from PS:**
Beat No.:
(b) **Address:**
Plot No.: Ahilyanagar (Erstwhile Ahmednagar) **Area:**
Maharashtra 414
City: Ahmednagar **Pin:** 414111
State: Maharashtra **District:** Ahmednagar
(c) **In case, outside the limit of this Police Station, then**
Name of PS: **District:**

6. **Complainant / Informant:**
Complainant 1

(a) **Name:** Mr. Pankaj Kumar Jha
(b) **Father's/Husband's Name:** Hem Chandra Jha
(c) **Date/Year of Birth:** 05/01/1980
(d) **Nationality:** INDIAN
(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
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(f) **Occupation:** Assistant General Manager, SIDBI

(g) **Address:**

Plot No	Area	City	State	District	Pin
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7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1**Name:** M/s Ujwal Electric Motors Pvt Ltd(1)**Address:****Accused 2****Name:** Mr.Anil Ragho Sali(2)**Address:****Accused 3****Name:** Mrs.Ujwala Anil Sali(3)**Address:****Accused 4****Name:** Mrs.Bharti Satish Dalvi(4)**Address:****Accused 5****Name:** M/s. Sangita Patil Constructions Pvt Ltd(5)**Address:****Accused 6****Name:** Mrs.Sangita Yashwant Patil(6)**Address:****Accused 7****Name:** Mr.Yashwant Patil(7)**Address:****Accused 8****Name:** Mr.Hemant M Kale(8)**Address:****Accused 9****Name:** Unknown Public Servant(s) & Private Person(s)**Address:****8. Reasons for delay in reporting by the complainant/informant:**

No delay

9. Particulars of properties stolen:

Item Name	Age of Property	Estimated Value (in INR)
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10. Total value of property stolen:**11. Inquest Report/U.D. Case No., if any:****12. First information contents:**

Sh. Pankaj Kumar Jha, Assistant General Manager, Small Industries Development Bank of India (SIDBI), Asset Recovery Vertical (ARV), Swavalamban Bhavan, 2nd Floor, C-11, 'G' Block, Bandra Kurla Complex, Bandra (East), Mumbai - 400051 preferred a written complaint dated 11.06.2025 alleging that the borrower company M/s. Ujwal Electric Motors Pvt. Ltd. (M/s. UEMPL) and its directors cheated Small Industries Development Bank of India (SIDBI) to the tune of Rs. 19.98 crores plus expenses & uncharged interest thereon by availing credit facilities of Rs. 20.00 crores and committing cheating, fraud, misappropriation of funds and criminal breach of trust. The written complaint dated 11.06.2025 originally addressed to The Head of Branch, CBI, EOB, Mumbai is enclosed herewith forming a part of FIR.

The abovementioned complaint disclosed that M/s. Ujwal Electric Motors Pvt. Ltd. was engaged in manufacturing of Electrical Stampings, Wound Stator, Die cast rotors used in household items and also industrial appliances from 1 HP to 1000 HP etc. M/s Ujwal Electric Motors Pvt. Ltd. was sanctioned term loan of Rs.15.00 crore under Direct Credit Scheme and subordinated loan of Rs. 5.00 crore under Growth Capital Equity and Assistance Scheme for MSMEs by SIDBI on 26th May 2015 for the purpose of setting up a new unit at Plot No. C-1, MIDC Area, Newasa, Ahmednagar, Maharashtra - 414607. After classifying the account as NPA, the SIDBI in writing called upon the Borrower Company / Directors / Guarantors with regard to recover its dues. The borrower company could not clear outstanding dues in time hence the account became NPA with effect from 11 May 2017. However, in spite of written communication, the Borrower Company / Directors / Guarantors failed to respond & pay dues of the bank. Hence, the bank proceeded further in accordance with the Master Circular of RBI and the said account was declared as fraud on 20th April 2018 and was reported to RBI on 26th April 2018.

The borrower company M/s. Ujwal Electric Motors Pvt. Ltd. and its promoters/directors viz. Sh. Anil Ragho Sali and Smt. Ujwala Anil Sali in collusion and connivance with Smt. Bharti Satish Dalvi, Proprietor of M/s. Bharti Enterprises and M/s. Sangita Patil Constructions Pvt. Ltd., through its directors viz. Smt. Sangita Yashwant Patil & Sh. Yashwant Patil and Sh. Hemant M. Kale, Charter accountant the Statutory Auditor with fraudulent and dishonest intentions, entered into criminal conspiracy to cheat SIDBI by way of indulging in fraudulent transactions with associate/related entities, raised fake bills and invoices, suppressed vital information from SIDBI at the time of seeking financial assistance & disbursements, misrepresented and submitted fake and fabricated documents to SIDBI and accounting transactions in its books without there being actual receipts. The said acts were committed by the accused persons with dishonest intentions and caused wrongful loss of Rs. 19.98 crores plus expenses & uncharged interest thereon to SIDBI and corresponding wrongful gain to themselves.

The acts committed by M/s. Ujwal Electric Motors Pvt. Ltd. (A-1) represented by its directors namely Sh. Anil Ragho Sali (A-2) & Smt. Ujwala Anil Sali (A-3) and Smt. Bharti Satish Dalvi (A-4) and M/s. Sangita Patil Constructions Pvt. Ltd. (A-5) represented by its directors namely Smt. Sangita Yashwant Patil (A-6) & Sh. Yashwant Patil (A-7) and Sh. Hemant M. Kale. (A-8) and unknown public servants & unknown others disclosed commission of offence punishable U/s 120-B r/w 420, 465, 467, 468 and 471 of IPC & 13(2) r/w 13(1)(d) of PC Act 1988 hence the FIR.

The Original complaint dated 11.06.2025 submitted by Sh. Pankaj Kumar Jha, Assistant General Manager, SIDBI is attached herewith forming part of this complaint.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO:

Murari Prasad

Rank:

DY. SUPDT. OF POLICE (EOB Mumbai)

No:

114073

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point of jurisdiction.

Attached documents:

Document name

Complaint against Ms Ujwal Electric Motors Pvt Ltd dated 11 Jun 25

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Pankaj Kumar Jha
13/06/2025

P. Krishnakant
Signature of
Officer
in-charge
Police Station

Name: P Krishnakant

Rank: SUPDT. OF
POLICE (EOB
Mumbai)

15. Date and time of dispatch to the Court:



By Registered Post WITH A.D. / Hand Delivery

Ref: SANMV/11062025/OUT/50571

Date: June 11, 2026

To,

1. The Superintendent of Police / *Head of Branch*
Central Bureau of Investigation,
Economic Offence Branch,
11th & 12th floor, CBI Building,
Plot No. C-35A, G Block,
Bandra-Kurla Complex [BKC],
Bandra [East], Mumbai-400051

2. CC To,
The Superintendent of Police
HOZ, BSF Zone,
Central Bureau of Investigation,
Economic Offence Wing,
CGO Complex, Lodhi Road,
New Delhi- 110 003.

CBI EOB MUMBAI		
HOB	11 JUN 2025	SR.PP
SP		Trial
PA		DO
CA		S/W
CR		DDO
Estt.		ADM
A/C		

Respected Madam / Sir,

Complaint in relation to Bank fraud,
"Misappropriation and Criminal Breach of Trust"
committed by M/s. Ujwal Electric Motors Pvt. Ltd. (Borrower Company)
and its Promoters and Directors along-with other unknown persons

With reference to the above, I, Pankaj Kumar Jha, presently working as Asstt. General Manager of Small Industries Development Bank of India ("SIDBI") at Asset Recovery Vertical (ARV), SIDBI at SWAVALAMBAN BHAVAN, 2nd Floor, C-11, G Block BKC, Bandra East, Mumbai, Maharashtra 400 051, being conversant with the facts of the subject matter and duly authorized by SIDBI, am re-filing this complaint stated hereunder against **M/s. Ujwal Electric Motors Pvt. Ltd.** ("Company / Borrower Company") and its Promoters / Directors viz. Shri Anil Ragho Sali and Smt. Ujwala Anil Sali [Director(s)], a Company having its office at Plot No. RM-31, MIDC Ahmednagar-414111, Maharashtra, and some other unknown persons along with unknown Public Servants, for fraud, on account of "Misappropriation and Criminal Breach of Trust" and other related offences, if any, before your good self, with a request to investigate into the matter and take necessary legal actions against the persons / offenders whose involvement are found in the perpetration of fraud on Bank and other related offences

बैंक हिन्दु विवेचना

भारतीय लघु उद्योग विकास बैंक

स्वावलम्बन भवन, एवेन्यू - 3, लेन -2, सी-11, जी ब्लॉक, बांद्रा कुर्ला कॉम्प्लेक्स, बांद्रा (पूर्व), मुंबई - 400 051. दूरभाष: +91 22 67531100 | फैक्स: +91 22 67221528

SMALL INDUSTRIES DEVELOPMENT BANK OF INDIA

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Toll Free No.: 1800 22 6753 | टोल फ्री नं.: 1800 22 6753

www.sidbi.in | www.udyamimitra.in

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the matter and take necessary legal actions against the persons / offenders whose involvement are found in the perpetration of fraud on Bank and other related offences under criminal law. The copy of the authorization letter is annexed and marked as **Annexure -1**.

Sr. no.	Particulars	Details
1	Name of the Bank	Small Industries Development Bank of India (hereinafter referred to as "SIDBI" or "Bank" or "Complainant") is a statutory corporation constituted under the Small Industries Development Bank of India Act , 1989 (Act no 39 of 1989) . SIDBI is the Principal Financial Institution for promotion, financing and development of Micro, Small and Medium Enterprises (MSMEs) having its Head Office at SIDBI Tower, 15, Ashok Marg, Lucknow 226001, Uttar Pradesh.
2	Name of the Branch	Small Industries Development Bank of India, Mumbai Unit of Asset Recovery Vertical (ARV), SIDBI at SWAVALAMBAN BHAVAN, 2nd Floor, C-11, G Block BKC, Bandra East, Mumbai, Maharashtra 400 051.
3	Date of lodging of complaint	June 11, 2025
4	Time, date and place of occurrence of fraud	Place: Ahmednagar Date: 20/04/2018 In order to examine the case from fraud angle, forensic audit of the account was undertaken by CA Avinash T Jain [M.No. 041689] M/s Raju and Prasad Chartered Accountants 511, The Corporate Centre, Nirmal Lifestyle Mall, L. B. S. Marg, Mulund (W), Mumbai. The observations are shared in Point 6 of this complaint below. On the basis of findings in forensic audit report, the fraud committed by the Borrower and the promoters came to the notice of SIDBI and SIDBI declared the account of Borrower as "Fraud" on April 20, 2018, on account of "Misappropriation and criminal breach of trust". The incident of fraud was duly reported to RBI vide SIDBI letter dated April 26, 2018.
5	Name of the complainant	Shri Pankaj Kumar Jha, AGM, SIDBI
6	Brief Details of fraud	As Detailed Below
	1. Ujwal Electric Motors Private Limited (CIN No. U31908PN2013PTCI46338; PAN No. AABCU5619B) a company within the meaning of the Companies Act 2013 (18 of 2013), engaged in manufacturing of Electrical Stampings,	



Wound stator, Die cast rotors which has application in Electrical Motors for House – hold appliances like mixer, washing machines, etc. and industrial applications from 1 HP to 1000 HP and having its registered office at Plot no. C-1, MIDC Area, Newasa, Ahmednagar – 414 607, Maharashtra and last known address Plot No. RM-31, MIDC Ahmednagar-414111, Maharashtra (hereinafter referred to as UEMPL or Borrower).

2. The main promoters of the company are:

1. Shri Anil Ragho Sali (PAN No. AAKPJ5865E)

Address: (i) Ujwanil Bunglow, Bank of Baroda Colony, Balikashram Road, Savedi, Ahmednagar 414003 (at the time of sanction); (ii) Plot No.RM-30, MIDC, Nagarpur, Ahmednagar (Present address).

2. Smt. Ujwala Anil Sali (PAN No. ALRPS9378R)

Address: (i) Ujwanil Bunglow, Bank of Baroda Colony, Balikashram Road, Savedi, Ahmednagar 414003 (at the time of sanction); (ii) Plot No.RM-30, MIDC, Nagarpur, Ahmednagar (Present address).

3. That SIDBI operates a scheme known as Direct credit scheme (hereinafter referred to as 'DCS') and Growth Capital and Equity Assistance Scheme for MSMEs (GEMS). During FY 2015, the promoters of UEMPL approached SIDBI Ahmednagar Extension Branch office (Which is merged with Pune branch office vide Direct credit vertical circular no. 62/ 2020-2021 dated September 10, 2020) for financial assistance through the said schemes vide application dated January 13, 2015 for setting up new unit for manufacturing of electrical stampings, wound stator, Die cast rotors etc. and industrial applications from 1 HP to 1000 HP. Along with the loan application, the borrower company also submitted to SIDBI, various documents / papers including financial statements for consideration and sanction of the said loan.

4. SIDBI considered the request of the borrower company and based on scrutiny of the documents submitted by the borrower company, sanctioned to UEMPL, term loan of Rs.1500 lakh, vide its letter of intent No. SIDBI/ANRXBO/22/DFS/UEMPL-53 dated May 26, 2015, under DCS and Subordinated debt of Rs.500.00 lakh vide its letter of intent No. SIDBI/ANRXBO/21/DFS/UEMPL-53 dated May 26, 2015 under GEMS to UEMPL for the purpose of setting up a new unit at Plot No.C-1, MIDC area, Newasa, Ahmednagar – 414607. As per sanctioned terms, approved cost of project and Means of Finance was as under:



Cost of Project			
Sr.No.	Description	Total (Amount in lakh)	Cost in Rs.
1	Land	282.00	
2	Land development	270.00	
3	Building / Civil works	800.00	
4	Plant & Machineries – Imported	998.00	
5	Misc. Fixed Assets	500.00	
6	Contingencies	50.00	
7	Prel. & Pre-operative expenses	160.00	
8	Working Capital margin	200.00	
	Total	3260.00	

Means of Finance		
Sr.No.	Description	Total Cost (Amount in Rs. lakh)
1	Promoters Contribution	850
2	Term loan	1500
3	Risk Capital (Sub Debt) under GEMS	500
4	Unsecured Loans	410
	Total	3260.00

5. The said term loan of Rs.1500 lakh under DCS was, inter-alia, secured by:
 - A. First charge by way of hypothecation in favour of SIDBI on all the movable assets of the company, including plant, machinery, equipments, spares, tools, accessories, furniture, fixtures and fittings, office equipment and other movables, acquired / to be acquired under the project.
 - B. First charge by way of equitable mortgage in favour of SIDBI on immovable properties situated at Plot No. C-1, (admeasuring 59850 sq. mtrs) at MIDC Area, A/P, Shingave Tukai, Taluka – Nevasa, Ahmednagar – 414607 owned by the borrower.
 - C. The Irrevocable and unconditional guarantee of Shri Anil Ragho Sali and Smt. Ujwala Anil Sali.
6. The said loan of Rs.500 lakh under GEMS was, inter-alia, secured by:
 - A. Second charge on all movable assets (including Current Asset) both present and future of UEMPL.



B. Second charge by way of mortgage in favour of SIDBI on immovable properties situated at Plot No. C-1, (admeasuring 59850 sq. mtrs) at MIDC Area, A/P, Shingave Tukai, Taluka – Nevasa, Ahmednagar – 414607 owned by the borrower.

C. Demand promissory note for an amount of Rs.500 lakh.

7. Security documents viz. Loan agreement, Deed of Hypothecation, Personal Guarantee, Undertaking for buyback of shares, Affidavits etc were executed on June 17, 2015 and registration of charge with RoC was created on June 17, 2015.

8. The disbursement in the loan account of Rs.1500 lakh was made in 6 tranches to the borrower. Details of disbursements are as under:

Disbursement Date	Amount (Rs. Lakh)	Purpose & mode of disbursement
15/07/2015	534.66	Construction of Building - RTGS directly to Contractor Sangeeta Patil Constructions Private Limited
30/09/2015	90.76	Construction of Building - RTGS directly to Contractor Sangeeta Patil Constructions Private Limited]
31/12/2015	40.86	Towards customs and Shipping charges- RTGS - CN Sanghvi & Co.
25/02/2016	186.69	Towards Margin Money for Working Capital (MMWC)
03/11/2016	475.60	Retirement of Letter of Credit (LC)
17/11/2016	169.38	Retirement of Letter of Credit (LC)
	1497.95	

9. The disbursement in the loan account of Rs.500 lakh was made in 6 tranches to the borrower. Details of disbursements are as under:

Disbursement Date	Amount (Rs. Lakh)	Purpose & mode of disbursement
08/09/2015	243.52	1) Opening of LC for USD 1180000 in favour Supplier for 3 Imported Machines - High Speed Press 2)RTGS of Rs.243.52 lakh towards various Misc. Fixed Assets and Indigenous Machines to various Machinery Suppliers
30/09/2015	83.97	Construction of Building- RTGS directly to Contractor Sangeeta Patil Constructions Private Limited



31/12/2015	13.62	Towards customs and Shipping charges- RTGS- CN Sanghvi & Co.
25/02/2016	13.31	Towards MMWC
03/11/2016	145.58	Retirement of LC
	500.00	

10. Owing to default in repayment of loans, the account of the Borrower turned NPA on May 11, 2017, as per RBI guidelines due to outstanding overdue for over 90 days. As on date of NPA, the total outstanding amount of UEMPL was Rs.1,997.95 lakh (Principal outstanding was Rs.1497.95 lakh under DCS term loan and Principal outstanding was Rs. 500 lakh for loan sanctioned under GEMS. Total overdue in accounts as per our books as on June 11, 2025 is Rs.5163.87 lakh.
11. Borrower was regularly followed up for clearance of overdues and for regularization of the account. On three occasions, cheques received from the borrower towards part clearance of overdues, were dishonoured. During FY 2019, SIDBI registered 3 criminal cases under Section 138, 141 with Chief Judicial Magistrate, Ahmednagar. Case CNR nos. and registration nos. MHAH03-002326-2018, 1700/2018 dated 27/03/2018, MHAH03-004340-2018, 3128/2018 dated 15/06/2018 and MHAH03-006856-2018, 4795/2018 dated 26/09/2018 respectively. These cases are pending before the Court for disposal.
12. Recovery proceedings is going on against borrower / guarantor and movable property [Plant and Machineries / MFAs] of borrower under Rule 7 of Security interest (Enforcement) Rules, 2002 was sold in consideration of the payment of Rs.33 lakh. Further statutory 30 days Sale Notice for the sale of immovable properties [Land and Building] of the borrower under SARFAESI ACT, 2002 [Rule 8 (6)] was also issued to borrower / personal guarantors on May 30, 2025 and e auction of the immovable property shall be conducted in the month of July 2025.
13. Despite follow-up and recovery efforts, the account remained under NPA category. In order to examine the case from fraud angle, forensic audit of the account was undertaken by CA Avinash T Jain [M.No. 041689] of M/s Raju and Prasad Chartered Accountants [FRN No.03475 S] having its office at 511, The Corporate Centre, Nirmal Lifestyle Mall, L. B. S. Marg, Mulund (W), Mumbai – 400080. Telefax: (O) 022 25671155/99 | Mobile: 9324087338 , following which below mentioned findings with fraudulent connotations were observed in the borrower's account:



(i) Concealing critical facts / Misinformation

- a. The plan to purchase capital goods from related entities was not disclosed in the loan application. Based on Annual Financial Statement (AFS), it is evident that the company had given advances to the tune of Rs. 177.50 lakh for the purpose of capital goods to Related Group Entities Bharti Enterprises (Rs. 127.50 lakh) promoted by Bharti Satish Dalvi and S Y Patil Construction (Rs. 50 lakh). Bharti Satish Dalvi is shareholder in Ujwal Electric Motors Pvt. Ltd. (UEMPL) and Ujwanil Wind Power Generation (India) Ltd (UWPGL), group concerns of the borrower. Non-disclosure of this information tantamount to concealment of material facts.
- b. In FY 2014 & 2015, no sales were shown by the borrower. However, an advance of Rs. 326 lakh was given by the borrower to a related party i.e. Ujwal Power Generation Pvt. Ltd. (UPGPL) for purchasing of Capital Goods. The Borrower had not disclosed its relationship with UPGPL, further the transaction was not a business transaction as there were no bills available against which these payments were made. These transactions are just book entries with the sole purpose of rotation of funds among group entities. This is a clear violation of terms and conditions of the Letter of Intent (LoI) dated May 26, 2015, wherein it was agreed by borrower that "the borrower shall agree that it would maintain the business dealing with its associate concerns purely on commercial terms".
- c. On few occasions, the borrower had collected and submitted acknowledgement from various related parties like Shri Y.B.Patil, Shri S.Y.Patil and Sangita Patil Constructions Private Limited regarding amount received. However, there are no bills against which these payments were received. Even the transactions with them had not been disclosed in the report under Related Party Head in the audited accounts. This is clear violation of terms and conditions of the Letter of Intent (LoI) dated May 26, 2015, wherein it was agreed by borrower that "the borrower shall agree that it would maintain the business dealing with its associate concerns purely on commercial terms".
- d. The entire project work was allotted by the Borrower to Sangita Patil Constructions Pvt. Ltd. (SPCPL), where Sangita Yashwant Patil & Yashwant Patil were directors & shareholders, who were also shareholders in UEMPL and UWPGL between FY 2014 to FY 2017. It shows that they were related parties, but it was not disclosed in Annual Financial Statement (AFS). Moreover, while the entire project was given to SPCPL, various payments amounting to Rs.49.73 lakh for cement



purchase, fuels, etc. were made separately clearly establishing diversion of funds.

- e. Details of all the associate concerns were not disclosed in the loan application form.
- f. Shri Hemant M Kale was Director on the Board of the company since FY 2014-15 and his firm H M Kale & Associates was statutory auditor of the company. In fact, Shri Kale was also a shareholder in the UEMPL and the borrower while submitting its application and clarification dated 27/02/2015 on succession planning had listed Shri Kale as "Strategic and Financial Planner" thus a Key Managerial Personnel. Thus, the collusion by the said firm with the Borrower with an intention to defraud the bank cannot be ruled out.

(ii) Round tripping of funds, diversion and mis-utilization of funds

- a. The promoters had indicated raising of stipulated share capital of Rs.850 lakh in the Borrower. On review of the bank statements provided by the Borrower with respect to capital introduced, it was observed that out of the said promoters' contribution, an amount of Rs.393.64 lakh was transferred on the same date when the amount was brought in by the promoters in the borrower company to related entities or such entities not associated with the project. Thus, the company had not brought in the stipulated promoters' contribution in the project, in violation of the terms contained in its Agreement with SIDBI.
- b. On one hand, the borrower had paid advances to the tune of Rs.127.50 lakh for capital goods to Bharti Enterprises and on the other hand, Bharti Enterprises was shown as debtor (Rs.386.26 lakh during FY 2016) in the books of accounts of the Borrower. No bills / invoices are available on record for capital goods purchased from Bharti Enterprises. This is clear violation of terms and conditions of the Letter of Intent (LoI) dated May 26, 2015, wherein it was agreed by borrower that "the borrower shall agree that it would maintain the business dealing with its associate concerns purely on commercial terms". Further, non-availability of invoices points to fictitious costs amounting to Rs.127.50 lakh.
- c. The proposal was for manufacture of electrical grade steel stampings to be used in electrical motors used in mixer, washing machines stator and rotor parts and other electrical stampings. In appraisal note & Sanction letter, there is no mention of assembly work of e-rickshaw. In the visit report dated March 03, 2017, it was observed first time by visiting officials that borrower was engaged in "assembly job of e-rickshaw in the name of OK Play India Ltd.". The nature of job undertaken by borrower other than the stipulated purpose clearly shows that funds have been diverted



for the activities other than for which the loan was sanctioned and disbursed to the Borrower. In this regard, it is observed that an amount of Rs.200 lakh was given to OK Play India Ltd. for purchasing of Goods, but there was no item being purchased from OK Play. Thus, diversion of funds to the extent of Rs.200 lakh is clearly visible here.

- d. In terms of Cost of Project and Means of finance approved at the time of sanction, a sum of Rs.800 lakh was allocated under the head "Building/ Civil works". Borrower, vide e-mail message dated September 30, 2015, requested for increase under the head "Building/ Civil works" from Rs.800 lakh to Rs.1044.7 lakh and subsequently increased it to Rs.1090.61 lakh as per CA certificate dated February 04, 2016. The said increase in cost of Rs.290.61 lakh under Building / Civil Works was made by reducing expenditure under the heads of Plant & Machinery (imported machine costing Rs.150.93 lakh); Misc. Fixed Assets (Rs.61.95 lakh); Preliminary & Pre-operative expenses (Rs.28.39 lakh) & Contingencies (Rs.49.34 lakh).
- e. As per the sanction terms, BO had undertaken valuation through SIDBI approved valuer in December 2015 and again in February 2016. Valuation report dated January 15, 2016, by Shri Vijay G Marathe indicates value of building/civil works at Rs.645 lakh and valuation report dated February 22, 2016, by Sanghvi Associates indicates value of building/civil works at Rs.928 lakh. However, a third valuation was got conducted in September 2017 by Astute Valuers who have, vide their report dated September 27, 2017, indicated value of building/civil works at Rs.823 lakh (inclusive of Weigh Bridge, transformer control room and underground water tank). This clearly shows that funds to the extent of Rs.267 lakh have been diverted for the activities other than for which the loan was sanctioned and disbursed to the Borrower.
- f. In respect of Civil Construction, it was envisaged as per detailed appraisal note that three sheds shall be constructed by the Borrower under the project. However, as seen from the above three valuation reports, only two sheds have been constructed. The third shed was never constructed as per sanctioned terms. This clearly shows diversion and wrongful misappropriation of funds.
- g. Share application money of Rs.40 lakh was indicated to have been raised from Shri Anil Sali & Mrs. Ujwala Anil Sali. However, in FY 2014, capital of these 2 promoters increased by just Rs.10 lakh, indicating withdrawal of the balance Rs.30 lakh. This is clear violation of terms and conditions of the Agreement between SIDBI and the borrower.

(iii) Raising of fake bills / invoices

- a. The entire project work was allotted to Sangita Patil Constructions Pvt. Ltd. (SPCPL). However, cement, fuels etc. had been ordered



continuously in huge quantities from different entities at small intervals indicating raising of fake expenditure bills.

- b. It was revealed by Forensic Auditor that review of creditors for Capital Goods and advance for Capital Goods for FY 2015 & 2016 revealed that there were various parties, major being (Ujwal Power Generation Pvt. Ltd.-Rs.3.27 cr ; Bharti Enterprises - Rs.1.27 cr; Shiv Alloy Casting - Rs.0.53 cr; S Y Patil & Construction - Rs.0.50 cr ; Samarth Hydraulics Power Systems - Rs.0.15 cr) for which there are no bills available amounting to Rs.577 lakh.
 - c. The forensic audit report has also revealed that there were instances where company had collected and submitted acknowledgement from various parties such as Y B Patil, S Y Patil and Sangita Patil Constructions Pvt Ltd., etc. but bills were not available against thereof.
 - d. There are many instances where bills were raised but having various types of discrepancies such as large amount of usage of fuels (Bill amount Rs.21.85 lakh), multiple bills of same date, increase of working hours in case of bills raised by Jay Bhadra Earthmovers (Bill amount Rs.3.15 lakh), same bill raised twice and acknowledged on 2 different dates, same bill formats used by different vendors namely Modern RCC & Lime Works (Bill amount Rs.1.22 lakh) and Shreeji Company (Bill amount Rs.3.39 lakh), same signatures on different bills, date of acknowledgement is before the date of invoice in respect of Invoices received from Trimurti Furniture (Bill amount Rs.3.02 lakh) etc.
 - e. All the above facts reveal that fake bills and invoices have been raised by the Borrower and its promoters / directors to seek disbursement against such fake bills and invoices and thereafter divert the funds thereby causing financial loss to SIDBI
14. On the basis of aforesaid findings, the fraud committed by the Borrower and the promoters came to the notice of SIDBI and SIDBI declared the account of Borrower as "Fraud" on April 20, 2018, on account of "Misappropriation and criminal breach of trust" and the principal amount involved in the said fraud is Rs.1997.95 lakh. The incident of fraud was duly reported to RBI vide SIDBI letter dated April 26, 2018.
15. Thus, from the above facts, it is apparent that the Borrower and its promoters / Directors viz. Shri Anil Ragho Sali and Smt Ujwala Anil Sali, in collusion and connivance with Bharti Enterprises, Proprietor Bharti Satish Dalvi; Sangita Patil Constructions Pvt. Ltd and its directors viz. Sangita Yashwant Patil & Yashwant Patil, have suppressed vital information from SIDBI, misrepresented and submitted forged and fabricated documents to SIDBI at the time of seeking financial assistance & disbursements and with



	their act of commission and omission dishonestly diverted and misappropriated the loan amount in gross violation of the terms of sanction thereby committing fraud on SIDBI and causing wrongful loss to SIDBI. 16. It may be mentioned that as per the report of forensic auditor M/s Raju and prasad CA, the promoters of the Co. have diverted the funds, and the details are given above. 17. There is nothing on the Bank's record, based on which any allegation of corruption could be made or substantiated by SIDBI against any of the public servants or its employees. 18. The Complaint was filed earlier with CBI vide letter dated 27/02/2023. The same was returned vide CBI Letter dated 01/05/2024 for non-compliance of Hon'ble Supreme Court guidelines with respect to affording opportunity to the proposed accused persons. Hence, SIDBI is re-filing the present complaint after complying with the CBI Letter dated 01/05/2024 (refer point no. 12 below) and requesting you to take immediate cognizance of the matter and carry out a detailed investigation and take appropriate legal action against the accused persons in accordance with law. 19. Further, CBI vide letter dated 01/05/2024 also advised to collect all original documents related to account from DRT and Base Branch. It is to be mentioned that original documents related to account were submitted to DRT, Pune and as per prevailing procedures original documents submitted to DRT, Pune can only be returned after disposal of OA matter. However, if required certified copies may be collected after filing a separate application with DRT. Other documents available with the Bank will be submitted as and when advised by CBI. SIDBI had approached DRT, Pune for issue of certified true copies of original documents which were duly issued by DRT, Pune.		
7	<table border="1"> <tr> <td>Names of the accused person (s)</td><td> 1. Ujwal Electric Motors Pvt. Ltd., Add: Plot No.C-1, MIDC Area, Newasa, Ahmednagar-414607 2. Shri Anil Ragho Sali, S/o Shri Ragho Rangnath Sali, Add: RM-30, MIDC, Industrial Area Nagapur, Ahmedngar-414003 3. Smt Ujwala Anil Sali, S/o Shri Anil Ragho Sali, Add: RM-30, MIDC, Industrial Area Nagapur, Ahmedngar-414003 4. Bharti Enterprises, Proprietor Bharti Satish Dalvi. 5. Sangita Patil Constructions Pvt. Ltd., Add: S.N. 64, Gera's Green Ville-II, Sky villas, Villa No IV-504, Fifth Floor Kharadi Pune-411014 6. Sangita Yashwant Patil, Directors of Sangita Patil Constructions Pvt. Ltd. 7. Yashwant Patil, Directors of Sangita Patil Constructions Pvt. Ltd. 8. Hemant M Kale, partner H M Kale & Associates </td></tr> </table>	Names of the accused person (s)	1. Ujwal Electric Motors Pvt. Ltd., Add: Plot No.C-1, MIDC Area, Newasa, Ahmednagar-414607 2. Shri Anil Ragho Sali, S/o Shri Ragho Rangnath Sali, Add: RM-30, MIDC, Industrial Area Nagapur, Ahmedngar-414003 3. Smt Ujwala Anil Sali, S/o Shri Anil Ragho Sali, Add: RM-30, MIDC, Industrial Area Nagapur, Ahmedngar-414003 4. Bharti Enterprises, Proprietor Bharti Satish Dalvi. 5. Sangita Patil Constructions Pvt. Ltd., Add: S.N. 64, Gera's Green Ville-II, Sky villas, Villa No IV-504, Fifth Floor Kharadi Pune-411014 6. Sangita Yashwant Patil, Directors of Sangita Patil Constructions Pvt. Ltd. 7. Yashwant Patil, Directors of Sangita Patil Constructions Pvt. Ltd. 8. Hemant M Kale, partner H M Kale & Associates
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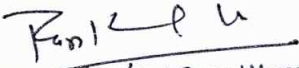


		Add: Flat No.4, Kanchan Apartment, Chaitanya Nagar, Professor Colony, Savedi, Ahmednagar-414003 9. Unknown Public Servants and Private person(s), if any.
8	Role of accused person (s) including the role of public servant (s)	In view of above stated facts and circumstances indicated at Sr. no. 6, prima facie, the offence of cheating, forgery, criminal misappropriation, criminal breach of trust, mischief etc. is clearly made out against accused persons indicated at Sr. No. 7 above.
9	Grave irregularities committed by public servant(s)	Unknown Public Servant, if any. NIL, as per our internal investigations, and ABBFF's observations.
10	Role of common conspirator	The Bank is not aware of any common conspirator. However, their role, if any may be looked into during the course of investigation.
11	Role of CA, Statutory Auditors, Empanelled valuers etc., if any are mentioned.	Shri Hemant M Kale was Director on the Board of the company since FY 2014-15 and his firm H M Kale & Associates was statutory auditor of the company. In fact, Shri Kale was also a shareholder in the UEMPL and the borrower while submitting its application and clarification dated 27/02/2015 on succession planning had listed Shri Kale as "Strategic and Financial Planner" thus a Key Managerial Personnel. Thus, the collusion by the said firm with the Borrower with an intention to defraud the bank cannot be ruled out.
12	Affording opportunity to the proposed accused persons in compliance of Hon'ble Supreme Court guidelines	As per Supreme Court order, 21 Day's Notice to Show cause was issued to the borrower as well as promoters / Directors of the borrower company viz. Shri Anil Ragho Sali and Smt. Ujwala Anil Sali on 22/08/2024, which got delivered on 26/08/2024, via registered post at the last known addresses available in the records of the complainant. Borrower and its promoters / Directors responded to the Show Cause via letter dated 21/09/2024 i.e., post completion of notice period, with subject 'Limited Reply'. Instead of using this opportunity to clarify on the issues highlighted in the said Show Cause Notice and submit reply along with necessary documents / papers in its support, however, borrower prefer to challenge the validity of the Show Cause Notice . Hence, after examining their reply, it was concluded that the Borrower as well as promoters / Directors have nothing to show in their defense or refute the charges / allegations levelled against them..



13	The name and addresses of prosecution witness	Witness (es) will have to be identified during the CBI's investigation, based on the facts revealed.
14	Action taken by Bank against Public servant/s including departmental proceedings initiated. If yes details thereof.	The internal investigations carried out by SIDBI had indicated certain procedural lapses / omissions against some of the officers, who had handled the account at different stages, in their official capacities. Depending upon the gravity of the said procedural lapses / omissions, which were devoid of any criminal misconduct, appropriate minor penalties have already been imposed on the officers concerned, and the disciplinary proceedings against them have since been concluded. The captioned case was referred to ABBFF. The extract of minutes of meeting of ABBFF, as advised vide letter dated March 16, 2022, is as under: "Based on the case papers and the responses of the CVO, the Advisory Board has prima facie not found any malafide intent / criminality on the part of the officials of the Bank. The advisory Board noted that in respect of the procedural and operational lapses identified appropriate disciplinary proceedings would be the responsibility of SIDBI."
15	Whether investigation conducted by the Bank, if yes, details of the major findings	As indicated at Sr no. 6 above.
16	Availability of original document(s)	All the loan and security documents executed by the Borrower Company in favour of SIDBI were available in original under custody of the Bank which has been submitted to DRT. As per the request of SIDBI, DRT Pune has issued certified true copies of original documents deposited with DRT, Pune.
17	Whether accused persons were involved in any other fraud in the Bank on an earlier occasion	Not Known
18	Whether the fraud has interstate,	Not known



	international ramification. If yes, give the details.	
19	In case of consortium whether complaint lodged by all banks or lead bank.	Not Applicable.
	Signature of the complainant with seal and date	भारतीय लघु उद्योग विकास बैंक SMALL INDUSTRIES DEVELOPMENT BANK OF INDIA  सहायक महाप्रबंधक/Asst. General Manager



TO WHOMSOEVER IT MAY CONCERN



Shri Pankaj Kumar Jha, Assistant General Manager, Small Industries Development Bank of India [SIDBI], having Office at Swsavalamban Bhavan, Avenue 3, Lane 2, SARB, 2nd Floor, Plot No.C-11, G Block, BKC, Bandra East, Mumbai - 400051 has been authorized and empowered by SIDBI to file, sign and/or affirm the Applications, Plaints, Petitions, Written Statements, Declaration, Affidavit-in-Reply, appeals, revisions, reviews and related papers before Small Causes Courts, Civil Court, District Court, Metropolitan Magistrate Court, Debt Recovery Tribunal, National Company Law Tribunal, High Court, etc., in the matter of M/s Ujwal Electric Motors Pvt Ltd., and other related parties/ case(s), if so arises and related purposes to take necessary steps, sign, affirm and file Written Statements and all other papers, vakalatnama, appeal, affidavit, writ & any other petition, review, revision, etc., and to do all acts, deeds, matters and things as may be necessary.

The said Shri Pankaj Kumar Jha, Assistant General Manager is further authorized & empowered to represent SIDBI in all its proceedings including legal proceedings, to collect, produce and lead evidence for and on behalf of SIDBI as and when required.

For Small Industries Development Bank of India

भारतीय लघु उद्योग विकास बैंक
SMALL INDUSTRIES DEVELOPMENT BANK OF INDIA

Atul Thakral

विवेक सहायकर सह. / Legal Advisor Cum
General Counsel

[Shri Atul Thakral]
LEGAL ADVISOR cum GENERAL COUNSEL

Place: Mumbai
Date: June 13, 2024



बैंक हिन्दी में पत्राचार का स्वागत करता है।

भारतीय लघु उद्योग विकास बैंक

स्वावलम्बन भवन, एवेन्यू - 3, लेन - 2, सी-11, जी ब्लॉक, बांद्रा कुर्ला कॉम्प्लेक्स, बांद्रा (पूर्व), मुंबई - 400 051. दूरभाष: +91 22 67531100 | फैक्स: +91 22 67221528

SMALL INDUSTRIES DEVELOPMENT BANK OF INDIA

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